

Mahesh Dutt Sharma v. Pakshimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 4 July 2022 · Writ-C No. 15634 of 2022 · Writ-C No. 15634 of 2022 ·
Writ dismissed; liberty to pursue civil suit or statutory remedies.

HEADNOTE

A writ of mandamus for restoration of electricity supply is not maintainable where the consumer is already pursuing a civil suit for correction of the electricity bill and for the benefit of an OTS scheme. The Division Bench dismissed the petition, leaving the petitioner free to continue that suit or to seek appropriate remedy under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mahesh Dutt Sharma filed a writ petition in the Allahabad High Court seeking a mandamus directing Pakshimanchal Vidyut Vitran Nigam Ltd. to restore his electricity connection. Counsel for the distribution licensee submitted that the petitioner had already filed Original Suit No. 344 of 2021 before the Civil Judge (Junior Division), Saharanpur, for a mandatory injunction to correct his electricity bill and to avail an OTS scheme. The plaint of that suit was on the writ record as Annexure 3.

HOLDING-UNITS

INTERPLAY · EA2003::

writ maintainability where civil suit pending

HOLDING

A writ of mandamus directing restoration of electricity supply is not maintainable where the consumer is already pursuing a civil suit for correction of the electricity bill and for the benefit of an OTS scheme. The petition was dismissed, with liberty to pursue that suit or to seek appropriate remedy under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

writ-not-maintainable-pending-civil-suit

Mandamus to restore supply was refused because Original Suit No. 344 of 2021 for bill correction and OTS was already pending; the petitioner was left to that suit or to remedies under the Act and the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO RESTORATION OF THE ELECTRICITY CONNECTION

Writ dismissed on maintainability; merits of reconnection were not examined. ¶ 1

NOT DECIDED — CORRECTION OF THE ELECTRICITY BILL AND ENTITLEMENT TO THE OTS SCHEME

Left to the pending civil suit or to remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. ¶ 1